[FIRM]

[FIRM ADDRESS] · [FIRM PHONE] · State Bar No. [BAR NO]

Date	2026-11-06
To	California Hot Sauce Solutions, LLC Attn: Registered Agent, [AGENT OF RECORD] [AGENT ADDRESS] And by email: info@californiahotsaucesolutions.com
Re	**CLRA §1782 notice — [CONSUMER] v California Hot Sauce Solutions — 2026-11-06 — Order [ORDER]**

This is a notice under Civil Code §1782(a) of the Consumers Legal Remedies Act on behalf of [CONSUMER], a California consumer, against California Hot Sauce Solutions, LLC, a California business entity doing business in California. It is served on the registered agent and by email. It is not a complaint and no action has been filed.

1. The transaction

On [CHARGE DATE] [CONSUMER] bought HOT BOX Subscription, billed monthly from californiahotsaucesolutions.com for $10.95, order [ORDER], card ending [LAST4]. The purchase was made on a mobile browser through the merchant's own self-serve funnel, from an advertisement at https://californiahotsaucesolutions.com/products/hot-box-subscription. A true copy of the statement line is Exhibit E5.

2. The practices

Each paragraph names the subsection and the exhibit. Captures were taken on 2026-11-06 in Chrome at 1366 by 900.

1. **§17602.** Renewal term not clear and conspicuous before consent. the terms of service never mention a subscription, a renewal period, a renewal amount or a cancellation mechanism. The only renewal words on the whole site are the four-word caption under the buy button. *(Exhibit E2, E3, product page and terms screen, mobile)*
2. **§17602.** No affirmative consent, the subscription radio is pre-selected. the Deliver every month radio arrives checked, so a shopper who taps Add to cart has consented to a recurring charge without touching it. *(Exhibit E2, product page, mobile viewport)*
3. **§17602.** No separate acknowledgment of the renewal terms. no policy commits to a post-purchase acknowledgment carrying the terms and the cancel mechanism, and the order confirmation is the

usual Shopify receipt. *(Exhibit E4, order flow)*

4. **§17602.** No cancel link, cancel sits behind an account login. there is no cancel path in the footer, the FAQ or the receipt. The only route is the customer account, then email to the address in the returns clause. *(Exhibit E6, site walk, mobile)*
5. **§17501.** Fictitious former price. six variants carry a compare-at price above the selling price with no reference date, no was-price period and no substantiation page. *(Exhibit E2, product JSON and product page, 2026-11-06)*

3. Damage

[CONSUMER] is out of pocket $10.95 on the transaction and exposed to a recurring charge of $10.95 every month that was not disclosed in the terms as rendered. The measure under §1780(a)(4) is the overcharge and restitution. The §17602 civil penalty is up to $2,500 per violation. Fees are mandatory to a prevailing plaintiff under §1780(e). Punitive damages are available on a willfulness showing under §1780(a)(4) with no proof of intent, and the consent burden is the merchant's.

4. What is demanded

Within thirty days of this notice:

1. Refund $10.95 to the card ending [LAST4] and confirm the cancellation in writing.
2. Pay the statutory cost allowance under §1782(b).
3. Confirm in writing that no further charge will post, and release the hold if one is open.
4. Deliver a signed mutual release, individual claims only, refund line separate from the money line, no admission.

Demand is $5,000 plus the cost allowance. If the cure is complete within five business days of this notice, [CONSUMER] will accept $4,500, which is ten per cent below the day thirty figure. A refund without the cost allowance, or a promise without the refund, is a defective cure and the claim survives it.

THE THIRTY DAY CLOCK RUNS FROM THE DATE ABOVE. ON DAY THIRTY ONE THE FILE ROUTES TO FILING.

Everything needed to evaluate this is attached. If the merchant wants to cure, reply to this email and the release goes out the same day.

[SIGNER]
[FIRM]
Counsel for [CONSUMER]

Enclosures: E1 advertisement capture, E2 interstitial set, E3 terms screen and consent state, E4 acknowledgment mail or proof of absence, E5 statement line, E6 cancel attempt and interstitials, E7 entity record. Drafted by the desk, signed by counsel.

Exhibit index

E1: product page as served to a 390x844 Chrome, 2026-11-06, showing the buy box

E2: buy box close capture, the pre-checked Deliver every month radio, and the compare-at price set

E3: terms of service as rendered, full text, no renewal clause

E4: order confirmation, to be attached at the posted charge

E5: statement line, to be attached at the posted charge

E6: footer and account walk showing no cancel link